



MAMA MARGARET UHURU HOSPITAL

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P.O. Box 49130-00100, NAIROBI | Outering Road, Off Kamunde Road
NAIROBI CITY COUNTY

PART 3: CONTRACT

CONTRACT AGREEMENT

(1) THIS CONTRACT AGREEMENT is made _____ (specify date).

Between **Mama Margaret Uhuru Hospital** [Procuring Entity], having its principal place of business at P.O. Box 49130-00100, Outering Road, Off Kamunde Road, Nairobi, and

[insert name of supplier, contractor or service provider],
having its principal place of business at

(2) WHEREAS the Procuring Entity invited quotations for the supply of goods/works/services (select one) described in Table B, i.e. _____ [insert brief description] and has accepted a quotation by the Tenderer in the sum of

[insert contract price in words and figures] (hereinafter called “the Contract Price”).

(3) NOW THIS AGREEMENT WITNESSES AS FOLLOWS:

1. This Contract Agreement includes the following documents:
 - a. Table A. Schedule of Requirements and Technical Specifications
 - b. Table B. Quotation Submission Table
 - c. Form of Quotation
 - d. Conditions of Contract
2. In consideration of the payments to be made by the Procuring Entity to the supplier/contractor/service provider as hereinafter mentioned, the supplier/contractor/service provider hereby covenants with the Procuring Entity to provide the goods/works/services and to remedy defects therein, in conformity in all respects with the provisions of the contract.
3. The Procuring Entity hereby covenants to pay the supplier/contractor/service provider, in consideration of the provision of the goods/works/services and the remedying of defects therein, the Contract Price or such other sum as may become payable under the provisions of the contract, at the times and in the manner prescribed by the contract.

(4) IN WITNESS whereof the parties hereto have caused this Agreement to be executed in accordance with the laws of Kenya.

For and on behalf of the Procuring Entity

Signed: _____

In the capacity of: _____

In the presence of: _____

For and on behalf of the Supplier / Contractor / Service Provider *(select one)*

Signed: _____

In the capacity of: _____

In the presence of: _____

CONDITIONS OF CONTRACT

1. **Language.** The contract, as well as all correspondence and documents relating to the contract exchanged by the supplier/contractor/service provider and the Procuring Entity, shall be written in the English language.
2. **Eligibility.** The goods shall have the nationality of an eligible country. All goods and related services to be supplied under the contract shall have their origin in eligible countries.
3. **Notices.** Any notice given by one party to the other pursuant to the contract shall be in writing.
4. **Governing Law.** The contract shall be governed by and interpreted in accordance with the laws of Kenya, unless otherwise specified hereunder.
5. **Settlement of Disputes.** The Procuring Entity and the supplier/contractor/service provider shall make every effort to resolve amicably, by direct informal negotiation, any disagreement or dispute arising between them under or in connection with the contract. If the parties fail to resolve their dispute or difference by such mutual consultation, either party may give notice to the other of its intention to commence arbitration. The dispute shall be referred to adjudication or arbitration in accordance with the laws of Kenya.
6. **Supplier / Contractor / Service Provider Responsibilities.** The supplier/contractor/service provider shall supply all the goods included in the Schedule of Requirements.
7. **Contract Price.** Prices charged by the supplier/contractor/service provider under the contract shall not vary from the prices quoted in its quotation.
8. **Terms of Payment.** The Contract Price shall be paid one hundred (100) percent as follows (*select one*):
 - i. For goods: price of goods received, upon submission of a claim/invoice supported by the acceptance certificate issued by the Procuring Entity.
 - ii. For works: upon valuation by the contractor of the portion of the works completed, such valuation to be accepted by the Procuring Entity, payments up to final completion certificate.
 - iii. For services: upon valuation by the service provider of the services completed, such valuation to be accepted by the Procuring Entity, payments up to final completion certificate.
9. **Inspections and Tests.** The supplier/contractor/service provider shall, at its own expense and at no cost to the Procuring Entity, carry out all such tests and/or inspections of the goods, works or services to confirm their conformity to technical specifications.
10. **Warranty.** The supplier warrants that all the goods are new, unused and of the most recent or current models, and that they incorporate all recent improvements in design and materials, unless provided otherwise in the contract.